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SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION (sued and served as HOPE PSYCHOTHERAPY, INC.)

UNITED STATES DISTRICT COURT

FOR THE NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, and individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation, Defendants.	Case No.: 3:26-cv-07504-LJC **DEFENDANTS SHANNON SMITH AND HOPE PROGRAM, A LICENSED CLINICAL SOCIAL WORKER PROFESSIONAL CORPORATION'S SUPPLEMENTAL REQUEST FOR JUDICIAL NOTICE IN SUPPORT MOTION TO DISMISS** Hearing Date: October 20, 2026 Hearing Time: 10:30 a.m. Court Room: G, 15th Floor Judge: Hon. Lisa J. Cisneros

Defendants Shannon Smith ("Smith") and HOPE Program, A Licensed Clinical Social Worker Professional Corporation ("Hope") (collectively "Defendants"), through their attorney of record, request that the Court take judicial notice pursuant to Federal Rule of Evidence 201(b) of a screenshot of the docket for the civil case *Newanforbi v. Palacios*, Case No. STK-CV-UF-2026-0001032 (2026), which was filed in the California Superior Court of the State of California for the County of San Joaquin.

The document is "capable of accurate and ready determination by resort to sources whose accuracy cannot be reasonably questioned" and is therefore properly subject to judicial notice. *See*

United States v. Richie, 342 F.3d 903, 908-09 (9th Cir. 2003); *Rosales-Martinez*, 753 F.3d 890, 894 (9th Cir. 2014) ("It is well established that [federal courts] may take judicial notice of judicial proceedings in other courts."); *U.S. ex rel. Robinson Rancheria Citizens Council v. Borneo, Inc.*, 971 F.2d 244, 248 (9th Cir. 1992) (internal quotation marks omitted) ("Federal courts may take notice of proceedings in other courts, both within and without the federal judicial system, if those proceedings have a direct relation to the matters at issue."); *see also Wagner v. LoanDepot.com, LLC*, No. 1:26-cv-03848-JLT-CDB, 2026 WL 1837366, at *4 (E.D. Cal. June 25, 2026) (taking judicial notice of "screenshots of the state court docket"); *Ikeda v. San Francisco Firemen Credit Union*, No. 20-cv-08071-TSH, 2021 WL 4776705, at *4 (N.D. Cal. Oct. 13, 2021) (same).

A true and correct copy of the screenshot of the docket for the civil case *Newanforbi v. Palacios*, Case No. STK-CV-UF-2026-0001032 (2026) is attached hereto as Exhibit A.

Dated: October 13, 2026

SIMS, LAWRENCE & BROGHAMMER

By: Cynthia G. Lawrence

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EXHIBIT A

THE SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN JOAQUIN

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Brenden Nghesi Newanforbi vs Katie Palacios, Clinical Director, et al.

Stockton

Summary | **Filings** | Parties | Documents | Events

Case Transfer

Filings

Case

Filing Date	Case Caption	Disposition
02/10/2026	Brenden Nghesi Newanforbi vs Katie Palacios, Clinical Director, et al.	Disposed as Case Disposed on 07/15/2026

Filings

Filing	Disposition
Complaint - Other Tort: Fraud (16) filed on 02/10/2026	Disposed as Case Disposed Disposition Undefined on 07/15/2026

Plaintiff Newanforbi, Brenden Nghesi

Defendant Katie Palacios, Clinical Director

Defendant HOPE Program (Stockton California), an individual

Defendant HOPE Psycotherapy, Inc., d/b/a HOPE Program, a California corporation

Case Disposition

Disposition	Date	Reopened
Case Disposed	07/15/2026	